Revised*

ITEM NO.25+24+26 COURT NO.1 SECTION X

S U P R E M E C O U R T O F I N D I A
RECORD OF PROCEEDINGS

Writ Petition(s)(Civil) No(s).1022/1989

ALL INDIA JUDGES ASSOCIATION & ORS. Petitioner(s)

VERSUS

UNION OF INDIA & ORS. Respondent(s)

IA No. 214366/2026 - APPLICATION FOR PERMISSION
IA No. 213880/2026 - APPLICATION FOR PERMISSION
IA No. 214286/2026 - APPLICATION FOR PERMISSION
IA No. 213887/2026 - APPROPRIATE ORDERS/DIRECTIONS
IA No. 214348/2026 - APPROPRIATE ORDERS/DIRECTIONS
IA No. 214282/2026 - APPROPRIATE ORDERS/DIRECTIONS
IA No. 214280/2026 - APPROPRIATE ORDERS/DIRECTIONS
IA No. 226548/2026 - APPROPRIATE ORDERS/DIRECTIONS
IA No. 225942/2026 - APPROPRIATE ORDERS/DIRECTIONS
IA No. 225938/2026 - CLARIFICATION/DIRECTION
IA No. 226777/2026 - CLARIFICATION/DIRECTION
IA No. 204448/2026 - CLARIFICATION/DIRECTION
IA No. 213634/2026 - CLARIFICATION/DIRECTION
IA No. 230491/2026 - CLARIFICATION/DIRECTION
IA No. 213943/2026 - EXEMPTION FROM FILING O.T.
IA No. 226645/2026 - EXEMPTION FROM FILING O.T.
IA No. 226778/2026 - EXTENSION OF TIME
IA No. 233711/2026 - EXTENSION OF TIME
IA No. 213885/2026 - INTERVENTION APPLICATION
IA No. 213712/2026 - INTERVENTION APPLICATION
IA No. 213708/2026 - INTERVENTION APPLICATION
IA No. 213707/2026 - INTERVENTION APPLICATION
IA No. 211509/2026 - INTERVENTION/IMPLEADMENT
IA No. 214489/2026 - INTERVENTION/IMPLEADMENT
IA No. 205627/2026 - INTERVENTION/IMPLEADMENT
IA No. 226773/2026 - INTERVENTION/IMPLEADMENT
IA No. 226764/2026 - INTERVENTION/IMPLEADMENT
IA No. 231951/2026 - INTERVENTION/IMPLEADMENT
IA No. 213944/2026 - INTERVENTION/IMPLEADMENT
IA No. 211510/2026 - MODIFICATION
IA No. 226762/2026 – MODIFICATION

WITH

Item No.24

Signature Not Verified
Digitally signed by
ARJUN BISHT
Date: 2026.09.07
16:50:11 IST
Reason:

Writ Petition(s)(Civil) No(s).1039/2026
IA No. 247480/2026 - EX-PARTE STAY
IA No. 247473/2026 - EXEMPTION FROM FILING O.T.

Item No.26

Writ Petition(s)(Civil) No(s).986/2025
IA No. 261808/2025 - GRANT OF INTERIM RELIEF

W.P.(C) No. 775/2026 (X)
IA No. 181645/2026 - EXEMPTION FROM FILING O.T.
IA No. 181647/2026 - STAY APPLICATION

W.P.(C) No. 880/2026 (X)
IA No. 205789/2026 - EXEMPTION FROM FILING O.T.

W.P.(C) No. 877/2026 (X)
IA No. 205494/2026 - CLARIFICATION/DIRECTION

W.P.(C) No. 913/2026 (X)
IA No. 215826/2026 - EXEMPTION FROM FILING O.T.

W.P.(C) No. 914/2026 (X)

W.P.(C) No. 982/2026 (X)
IA No. 232308/2026 - EXEMPTION FROM FILING O.T.

W.P.(C) No. 989/2026 (X)

Date : 01-09-2026 This matter was called on for hearing today.

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UPON hearing the counsel the Court made the following
O R D E R

1. Pursuant to our earlier order dated 05.08.2026, this Court had called upon the High Courts and the State Governments/UT Administrations to give their response with regard to enhancement of age of retirement and superannuation of the District Judiciary across the country.

2. Subsequent thereto, responses have been filed by the High Courts and certain State Governments. It emerges therefrom that the High Courts are, by and large, *ad idem* that the age of superannuation of judicial officers be enhanced from 60 years to 62 years. Some High Courts have, however, recommended that continuation in service beyond the existing age of superannuation be made subject to an assessment of performance. The responses received from the respective High Courts are set out below:

Sr. No.	High Court	Particulars
1.	Allahabad High Court	The Full Court of the High Court has resolved in favour of increase of age of judicial officers from 60 to 62 years.
2.	Calcutta High Court	The High Court has taken an administrative decision in favour of proposed enhancement of the age of superannuation of the Judicial Officers from 60 years to 62 years.
3.	Delhi High Court	The High Court is of view that the age of superannuation of judicial officers be enhanced from 60 to 62 years.
4.	Gauhati High Court	The Full Court of the High Court resolved to approve enhancement of the age of

		superannuation of Judicial Officers in the Assam, Nagaland, Mizoram, and Arunachal Pradesh from 60 to 62 years.
5.	Gujarat High Court	The Full Court of the High Court deliberated the subject matter, which has now been deferred for further discussion in another meeting to be convened very soon.
6.	Himachal Pradesh High Court	The High Court has resolved to enhance the age of superannuation of the members of Himachal Pradesh Judicial Service from the existing age of 60 years to 62 years.
7.	High Court of Jammu and Kashmir and Ladakh	The High Court resolved to recommend raising of the retirement age of Judicial Officers in J&K and Ladakh to 62 years, subject to the condition that they are found fit and eligible for their continued utility beyond the age of 60 years.
8.	Jharkhand High Court	The High Court resolved to recommend enhancement of the age of superannuation of Judicial Officers to 62 years and ask the State Government to reconsider its earlier decision.
9.	Kerala High Court	The High Court opined that the age of superannuation of the Members of the District Judiciary be enhanced to 62 years with prospective effect.
10.	Madras High Court	The High Court resolved to enhance the retirement age of Judicial Officers of the Tamil Nadu State Judicial Service and Puducherry Judicial Service from 60 years to 62 years. However, such extension shall not be automatic but be subject to a screening process similar to that conducted at the age

		of 58 years, to ensure the fitness and suitability of the Judicial Officers whose services are proposed to be extended up to 62 years.
11.	Manipur High Court	The Full Court of the High Court resolved to increase the superannuation age of officers of the Manipur Judicial Service from the existing 60 years to at least 62 years.
12.	Orissa High Court	The High Court revisited its previous Resolution and now resolved that the age of superannuation of Members of the District Judiciary shall be extended from 60 to 62 years.
13.	Patna High Court	The Full Court of the High Court resolved to enhance the retirement age of Judicial Officers from 60 to 62 years.
14.	Punjab and Haryana High Court	The High Court resolved that the retirement age of the Judicial Officers in Punjab and Haryana may be enhanced from 60 years to 62 years.
15.	Rajasthan High Court	The High Court accorded its consent for enhancement of the age of superannuation of Judicial Officers from 60 to 62 years.
16.	Sikkim High Court	The High Court resolved that the age of superannuation of members of the District Judiciary be increased from the present 60 years to 62 years.
17.	Telangana High Court	The High Court resolved to recommend enhancement of the age of superannuation of the Judicial Officers from 61 years to 62 years.
18.	Tripura High Court	The High Court agreed to the proposal to enhance the age of superannuation of

		Judicial Officers from 60 years to 62 years.
19.	Uttarakhand High Court	The High Court agreed to enhance the age of superannuation of members of the District Judiciary from 60 to 61 years.

3. The responses of the State Governments/UT Administrations, however, are varied. While some of them have agreed to the recommendations of the High Courts to enhance the age of superannuation, others have either sought time for further consideration or demurred, primarily on the grounds that it would be an additional burden on the State exchequer or such enhancement in age would cause heartburn amongst other employees in the service of the State. States have also flagged the concern that such enhancement would affect legitimate aspirations of the young entrants in judicial services. For better appreciation, a chart containing the stand taken by the different States/UTs is set out hereinafter:

Sr. No.	**State**	**Particulars**
1.	Andhra Pradesh	*No affidavit/written submission has been filed.*
2.	Arunachal Pradesh	The State Government is actively considering the matter. (*as submitted by the learned Advocate General*)
3.	Assam	The State Government is not agreeable to the proposition for extending the age of superannuation of Members of District Judiciary beyond 60 years.
4.	Bihar	The State Government has arrived at the decision not to enhance the age of judicial officers from the present age of 60 years.
5.	Chhattisgarh	The State has taken a decision to enhance

		the age of superannuation of officers of the District Judiciary from 60 to 62 years.
6.	Goa	The recommendation of the Bombay High Court is presently under active consideration of the State Government
7.	Gujarat	The issue is pending consideration by the competent authority, and additional time is required for taking a final decision.
8.	Haryana	The State Government reiterated its stand to not raise the age of judicial officers beyond 60 years.
9.	Himachal Pradesh	*No affidavit/written submission has been filed.*
10.	Jharkhand	*No affidavit/written submission has been filed.*
11.	Karnataka	The State Government has agreed to increase the age of superannuation from 60 to 62 years. (*as submitted by the learned Advocate General*)
12.	Keralam	The State Government has taken a decision that the retirement age of Judicial Officers may not be enhanced for the time being.
13.	Madhya Pradesh	The State Government has agreed to increase the age of superannuation from 60 to 62 years. (*as submitted by the learned standing counsel*)
14.	Maharashtra	The State Government has agreed to increase the age of superannuation from 60 to 62 years. (*as submitted by the learned Advocate General*)
15.	Manipur	The State Government has taken a decision to maintain the existing age of superannuation of Judicial Officers at 60

		years.
16.	Meghalaya	As per the applicable Rules, the age of superannuation of the Judicial Officers in the State of Meghalaya is 58 years, with the High Court having power to retain services of any Judicial Officer till the age of 60 years.
17.	Mizoram	*No affidavit/written submission has been filed.*
18.	Nagaland	*No affidavit/written submission has been filed.*
19.	Odisha	The State Government is actively considering the matter. (*as submitted by the learned Advocate General*)
20.	Punjab	The existing retirement age of 60 years is legally valid and does not warrant alteration in the State at this stage.
21.	Rajasthan	The State will reconsider the matter in light of the orders of this Court. (*as submitted by the learned Attorney General*)
22.	Sikkim	The State Government has agreed to increase the age of superannuation from 60 to 62 years. (*as submitted by the learned Advocate General*)
23.	Tamil Nadu	The State Government has no objection to enhancement of the superannuation age of the Judicial Officers in the Tamil Nadu State Judicial Service from 60 to 62 years.
24.	Telangana	The proposal of the High Court to enhance the age of superannuation is under active consideration by the State.
25.	Tripura	The issue is under active consideration of all the stakeholder Departments of the State Government, and it is anticipated that it

		would take two more weeks' time.
26.	Uttarakhand	The age of superannuation of the Members of the District Judiciary shall be retained at 60 years.
27.	Uttar Pradesh	The view of the State Government is that the age of superannuation of Judicial Officers be kept at 60 years only.
28.	West Bengal	The State Government has agreed to increase the age of superannuation from 60 to 62 years. (*as submitted by the learned Advocate General*)
29.	NCT of Delhi	The process of obtaining approval from the competent authorities is underway, and the position of the NCT shall be consequential to it.
30.	UT of Jammu & Kashmir	*No affidavit/written submission has been filed.*
31.	UT of Puducherry	The UT Administration is actively considering the matter. (*as submitted by the learned Counsel for the UT*)

4. We have heard Mr. Siddharth Bhatnagar, Learned *Amicus Curiae*, Mr. R. Venkatramani, Learned Attorney General for India (appearing for the State of Rajasthan), the Learned Advocates General/Senior Counsel/Standing Counsel for the other States/UTs, Mr. Vikas Singh and the other Learned Senior Counsel/Counsel appearing for the intervenors. Mr. Bhatnagar has rightly pointed out that the age of superannuation of judicial officers was last enhanced in 1992.[1] As a consequence of that judicial decision, the Union of India as well as the various States filed various Review Petitions, leading to this Court making detailed

[1] All India Judges' Assn. (1) v. Union of India, (1992) 1 SCC 119

findings in ***All India Judges' Association v. Union of India***,[2] the relevant extract whereof reads as under:

> "***7. It is not necessary to repeat here what has been stated in the judgment under review while dealing with the same contentions raised there. We cannot however, help observing that the failure to realize the distinction between the judicial service and the other services is at the bottom of the hostility displayed by the review petitioners to the directions given in the judgment. The judicial service is not service in the sense of 'employment'. The Judges are not employees. As members of the judiciary, they exercise the sovereign judicial power of the State. They are holders of public offices in the same way as the members of the council of ministers and the members of the legislature. When it is said that in a democracy such as ours, the executive, the legislature and the judiciary constitute the three pillars of the State, what is intended to be conveyed is that the three essential functions of the State are entrusted to the three organs of the State and each one of them in turn represents the authority of the State. However, those who exercise the State power are the Ministers, the Legislators and the Judges, and not the members of their staff who implement or assist in implementing their decisions. The council of ministers or the political executive is different from the secretarial staff or the administrative executive which carries out the decisions of the political executive. Similarly, the Legislators are different from the legislative staff. So also the Judges from the judicial staff. The parity is between the political executive, the Legislators and the Judges and not between the Judges and the administrative executive. In some democracies like the USA, members of some State judiciaries are elected as much as the members of the legislature and the heads of the State. The Judges, at whatever level they may be, represent the State and its authority unlike the administrative executive or***

[2] (1993) 4 SCC 288.

the members of the other services. The members of the other services, therefore, cannot be placed on a par with the members of the judiciary, either constitutionally or functionally.

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9. So much for the contention of the review petitioners that the directions given by this Court would lead to the demand from the members of the other services for similar service conditions. It is high time that all concerned appreciated that for the reasons pointed out above there cannot be any link between the service conditions of the Judges and those of the members of the other services. It is true that under Article 309 of the Constitution, the recruitment and conditions of service of the members of the subordinate judiciary are to be regulated by the Acts of the appropriate legislature and pending such legislation, the President and the Governor or their nominees, as the case may be, are empowered to make rules regulating their recruitment and the conditions of service. It is also true that after the Council of States makes the necessary declaration under Article 312, it is the Parliament which is empowered to create an All India Judicial Service which will include posts not inferior to the post of District Judge as defined under Article 236. However, this does not mean that while determining the service conditions of the members of the judiciary, a distinction should not be made between them and the members of the other services or that the service conditions of the members of all the services should be the same. As it is, even among the other services, a distinction is drawn in the matter of their service conditions. This Court has in the judgment under review, pointed out that the linkage between the service conditions of the judiciary and that of the administrative executive was an historical accident. The erstwhile rulers constituted, only one service, viz., the Indian Civil Service for recruiting candidates for the judicial as well as the administrative service and it is from among the successful

candidates in the examination held for such recruitment, that some were sent to the administrative side while others to the judicial side. Initially, there was also no clear demarcation between the judicial and executive services and the same officers used to perform judicial and executive functions. Since the then Government had failed to make the distinction between the two services right from the stage of the recruitment, its logical consequences in terms of the service conditions could not be avoided. With the inauguration of the Constitution and the separation of the State power distributed among the three branches, the continuation of the linkage has become anachronistic and is inconsistent with the constitutional provisions. As pointed out earlier, the parity in status is no longer between the judiciary and the administrative executive but between the judiciary and the political executive. Under the Constitution, the judiciary is above the administrative executive and any attempt to place it on a par with the administrative executive has to be discouraged. The failure to grasp this simple truth is responsible for the contention that the service conditions of the judiciary must be comparable to those of the administrative executive and any amelioration in the service conditions of the former must necessarily lead to the comparable improvement in the service conditions of the latter.

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29. The alleged financial burden that would be thrown on the State exchequer on account of the enhancement of the superannuation age as a result of the payment of the maximum salary in the pay scale to the officers for a further period of 2 or 5 years as the case may be, and on account of the higher outlay on their retiral benefits, is negligible considering the enormous advantage that the administration of justice and the society at large would derive from the enhancement in the age of retirement. The additional financial outlays have also to be weighed against

those occasioned by the training of the new recruits, comparatively lower and slower rate of disposal of cases, higher rate of incorrect decisions and the consequent more number of appeals etc. Further, a simple arithmetical exercise would show that there is in fact little extra financial outlay involved. For, as against the payment of the maximum salary for another 2 or 5 years as the case may be, we have to calculate, for that period, the salary of the new recruit and the pension of the incumbent. The further contention that it would affect the employment conditions in different States is equally misconceived since all over India there are not more than about 10,000 judicial posts and most of the judicial officers after their retirement come to be appointed to the quasi-judicial or administrative tribunals. Thus, we see no merit in any of the objections to the enhancement of the retiring age."

[Emphasis supplied]

5. More than three decades have elapsed since the said pronouncements. During this period, the sanctioned strength of the judicial service in most States has been increased, and a substantial number of posts have remained vacant on account of the non-availability of eligible candidates. The induction of competent judicial officers is a *sine qua non* for the preservation of an independent judiciary, which forms part of the basic structure of the Constitution. Judicial officers constitute a specialised cadre, distinct and independent from the other categories of employees in the service of the State.

6. It bears no gainsaying that the appointment and conditions of service of judicial officers are matters falling within the direct control of the respective High Courts under Articles 233 and 235 of the Constitution.[3] Other employees of the State cannot, therefore, claim parity with members of the judicial service. In these

[3] Shamsher Singh and Anr. v. State of Punjab, 1974 AIR 2192.

circumstances, the apprehension expressed by the States regarding heartburn amongst other categories of employees is wholly unfounded. Equally misplaced is the apprehension of additional financial burden; on the contrary, an increase in the age of superannuation would enable the State to retain the services of experienced officers, while simultaneously effecting substantial savings on the post-retirement benefits that would otherwise become payable upon their superannuation.

7. In fact, these very issues stood substantially addressed and negatived in our earlier order dated 05.08.2026.[4] However, with a view to achieving a sense of consensus, we had directed the State Governments to revisit the issue and, uninfluenced by the age of superannuation prescribed for other Government employees, to bear in mind the reasons recorded in the said order. We note with appreciation that almost all the High Courts have agreed to the enhancement of the age of superannuation from 60 years to 62 years, and that several States, upon revisiting the issue, have departed from their earlier stance and likewise agreed to such enhancement. Others, however, continue to hold on to the same reasoning as before, which did not find favour with this Court.

8. It needs no emphasis that the source of recruitment, the nature of duties discharged by a judicial officer, and the power of appointment and superintendence exercised by the High Court under the constitutional scheme, unequivocally distinguish the unique and independent character of the judicial service from that of other employees of the State Government. In such view of the matter, we reiterate our opinion that the enhancement of the age of superannuation of judicial officers cannot be permitted to have a cascading effect

[4] Order dated 05.08.2026 in W.P. (C) No. 1022/1989, Paragraphs 7-13.

on the principle of parity claimed by other employees. Apprehension has been expressed that this exercise may cause disruption amongst other categories of employees and derail the smooth functioning of civic administration in the States; we are constrained to observe that such apprehensions are wholly extraneous to the issue at hand, namely, the requirement of enhancing the age of superannuation of members of the judicial service for the efficient administration of justice.

9. As other employees of the State cannot claim parity with members of the judicial service, it would be wholly untenable in law to withhold the enhancement of the age of superannuation on the plea of an unjustified and petulant demand raised by other employees of the State. The concern of the States regarding an enhanced financial burden is, in our view, clearly misconceived. Were members of the judicial cadre to superannuate at the age of 60 instead of 62, the State would stand burdened with the responsibility of paying the post-retiral dues of such superannuated officers, in addition to the salary of those newly appointed in their place. On the contrary, if experienced members of the judicial cadre are permitted to continue in service till the age of 62, the additional burden of bearing such post-retiral dues would stand correspondingly postponed.

10. The third, and more significant, aspect has been highlighted by Mr. Vikas Singh, namely, that judicial officers require specialised training, and experience has shown that the recruitment of independent and competent judicial officers is an arduous task. Most of the recruitment drives undertaken in the various States have not resulted in optimum recruitment or in the filling up of the sanctioned cadre strength, and a yawning gap between the sanctioned and working strength persists across the board.

11. Mr. Singh has argued that a similar crisis of employability is discernible in other professional cadres as well, and that the States concerned have responded thereto by enhancing the age of superannuation applicable to those cadres. We are of the view that identical reasoning applies with full force to the judicial service and would justify the enhancement of the age of superannuation of judicial officers. We further take note of the fact that a similar recommendation was made by the Shetty Commission, which was not accepted by this Court in ***All India Judges' Association (3) v. Union of India***.[5] It was contended therein that the age differential between the High Court and the district judiciary ought to be maintained.

12. We have taken into consideration the fact that age differential may be a legitimate expectation in the superior judiciary. But, the crying need of the hour is to ensure that the attrition of the experienced judicial talent be arrested so that the gap between the sanctioned and the working strength in the judicial service is reduced, and access to justice does not remain a mere chimera due to unfilled posts. It is with this spirit that we request the High Courts and States to reconsider the issue with regard to enhancement of age of superannuation in the district judiciary, whose conditions of service are to be governed by rules framed on their recommendation.

13. Being alive to the aforesaid crisis in dispensation of justice, most of the High Courts have consented to such enhancement. Some High Courts have wisely added relevant riders with regard to assessment of judicial work as a condition precedent, so that deadwood can be removed, and only the competent officers of proven integrity may be permitted to continue in the cadre. This suggestion is

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[5] (2002) 4 SCC 247, paragraph 26.

most welcome as it would balance the preservation of experienced judicial officers, while removing the clog of deadwood, blocking the entrance of young blood invigorating the system.

14. In light of these circumstances, we are inclined to issue the following directions:

(a) The States which have consented to the enhancement of age of the Judicial Officers, namely, Chhattisgarh, Karnataka, Madhya Pradesh, Maharashtra, Sikkim, Tamil Nadu, West Bengal, are directed to amend the service rules and enhance the age of superannuation in the judicial service to 62 years, subject to the suitability assessment of the concerned Judicial Officer, on their attainment of the age of 60 years, by the High Court. Such amendments shall be carried out as early as possible, preferably within two months;

(b) Pending amendment of the rules, no judicial officer in the aforesaid States who has attained the age of 60 years shall superannuate until he attains the age of 62 years, subject to an assessment of his suitability and performance by the High Court concerned;

(c) Judicial officers in the aforesaid States who have superannuated on or after 31.03.2026 shall be given an option to re-join the judicial office, if they have not already obtained subsequent employment or has been appointed to any other office of profit under the Union Government or any State Government. In the event they exercise such option in the affirmative, they shall be reappointed with all consequential benefits of pay, seniority, and continuity in service, subject to their suitability assessment and their performance by the High Court, and surrender of post-retirement benefits, if any already granted;

(d) Other States/UTs, i.e., Andhra Pradesh, Arunachal Pradesh, Assam, Bihar, Goa, Gujarat, Haryana, Himachal Pradesh, Jharkhand, Keralam, Manipur, Meghalaya, Mizoram, Nagaland, Odisha, Punjab, Rajasthan, Telangana, Tripura, Uttarakhand, Uttar Pradesh, NCT of Delhi, Jammu

and Kashmir, and Puducherry and are directed to reconsider their decision, if already taken, or take an appropriate decision in the matter of enhancement of age in the judicial service from 60 to 62 years, in the light of the observations made by us in our order dated 05.08.2026 as well as in this order, positively within two weeks, and submit a compliance report.

15. Post these matters for further consideration on 30.09.2026. The Registry is directed not to tag W.P.(C) No.1022 of 1989 with the other petitions.

(ARJUN BISHT)
ASTT. REGISTRAR-cum-PS

(PREETHI DILEEP KUMAR)
DY. REGISTRAR

***Revised for listing date**

ITEM NO.25+24+26 COURT NO.1 SECTION X

S U P R E M E C O U R T O F I N D I A
RECORD OF PROCEEDINGS

Writ Petition(s)(Civil) No(s).1022/1989

ALL INDIA JUDGES ASSOCIATION & ORS. Petitioner(s)

VERSUS

UNION OF INDIA & ORS. Respondent(s)

IA No. 214366/2026 - APPLICATION FOR PERMISSION
IA No. 213880/2026 - APPLICATION FOR PERMISSION
IA No. 214286/2026 - APPLICATION FOR PERMISSION
IA No. 213887/2026 - APPROPRIATE ORDERS/DIRECTIONS
IA No. 214348/2026 - APPROPRIATE ORDERS/DIRECTIONS
IA No. 214282/2026 - APPROPRIATE ORDERS/DIRECTIONS
IA No. 214280/2026 - APPROPRIATE ORDERS/DIRECTIONS
IA No. 226548/2026 - APPROPRIATE ORDERS/DIRECTIONS
IA No. 225942/2026 - APPROPRIATE ORDERS/DIRECTIONS
IA No. 225938/2026 - CLARIFICATION/DIRECTION
IA No. 226777/2026 - CLARIFICATION/DIRECTION
IA No. 204448/2026 - CLARIFICATION/DIRECTION
IA No. 213634/2026 - CLARIFICATION/DIRECTION
IA No. 230491/2026 - CLARIFICATION/DIRECTION
IA No. 213943/2026 - EXEMPTION FROM FILING O.T.
IA No. 226645/2026 - EXEMPTION FROM FILING O.T.
IA No. 226778/2026 - EXTENSION OF TIME
IA No. 233711/2026 - EXTENSION OF TIME
IA No. 213885/2026 - INTERVENTION APPLICATION
IA No. 213712/2026 - INTERVENTION APPLICATION
IA No. 213708/2026 - INTERVENTION APPLICATION
IA No. 213707/2026 - INTERVENTION APPLICATION
IA No. 211509/2026 - INTERVENTION/IMPLEADMENT
IA No. 214489/2026 - INTERVENTION/IMPLEADMENT
IA No. 205627/2026 - INTERVENTION/IMPLEADMENT
IA No. 226773/2026 - INTERVENTION/IMPLEADMENT
IA No. 226764/2026 - INTERVENTION/IMPLEADMENT
IA No. 231951/2026 - INTERVENTION/IMPLEADMENT
IA No. 213944/2026 - INTERVENTION/IMPLEADMENT
IA No. 211510/2026 - MODIFICATION
IA No. 226762/2026 – MODIFICATION

WITH

<u>Item No.24</u>

Writ Petition(s)(Civil) No(s).1039/2026
IA No. 247480/2026 - EX-PARTE STAY
IA No. 247473/2026 - EXEMPTION FROM FILING O.T.

Item No.26

Writ Petition(s)(Civil) No(s).986/2025
IA No. 261808/2025 - GRANT OF INTERIM RELIEF

W.P.(C) No. 775/2026 (X)
IA No. 181645/2026 - EXEMPTION FROM FILING O.T.
IA No. 181647/2026 - STAY APPLICATION

W.P.(C) No. 880/2026 (X)
IA No. 205789/2026 - EXEMPTION FROM FILING O.T.

W.P.(C) No. 877/2026 (X)
IA No. 205494/2026 - CLARIFICATION/DIRECTION

W.P.(C) No. 913/2026 (X)
IA No. 215826/2026 - EXEMPTION FROM FILING O.T.

W.P.(C) No. 914/2026 (X)

W.P.(C) No. 982/2026 (X)
IA No. 232308/2026 - EXEMPTION FROM FILING O.T.

W.P.(C) No. 989/2026 (X)

Date : 01-09-2026 This matter was called on for hearing today.

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HON'BLE MRS. JUSTICE V. MOHANA

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UPON hearing the counsel the Court made the following
O R D E R

16. Pursuant to our earlier order dated 05.08.2026, this Court had called upon the High Courts and the State Governments/UT Administrations to give their response with regard to enhancement of age of retirement and superannuation of the District Judiciary across the country.

17. Subsequent thereto, responses have been filed by the High Courts and certain State Governments. It emerges therefrom that the High Courts are, by and large, *ad idem* that the age of superannuation of judicial officers be enhanced from 60 years to 62 years. Some High Courts have, however, recommended that continuation in service beyond the existing age of superannuation be made subject to an assessment of performance. The responses received from the respective High Courts are set out below:

Sr. No.	High Court	Particulars
20.	Allahabad High Court	The Full Court of the High Court has resolved in favour of increase of age of judicial officers from 60 to 62 years.
21.	Calcutta High Court	The High Court has taken an administrative decision in favour of proposed enhancement of the age of superannuation of the Judicial Officers from 60 years to 62 years.
22.	Delhi High Court	The High Court is of view that the age of superannuation of judicial officers be enhanced from 60 to 62 years.
23.	Gauhati High Court	The Full Court of the High Court resolved to approve enhancement of the age of superannuation of Judicial Officers in the

		Assam, Nagaland, Mizoram, and Arunachal Pradesh from 60 to 62 years.
24.	Gujarat High Court	The Full Court of the High Court deliberated the subject matter, which has now been deferred for further discussion in another meeting to be convened very soon.
25.	Himachal Pradesh High Court	The High Court has resolved to enhance the age of superannuation of the members of Himachal Pradesh Judicial Service from the existing age of 60 years to 62 years.
26.	High Court of Jammu and Kashmir and Ladakh	The High Court resolved to recommend raising of the retirement age of Judicial Officers in J&K and Ladakh to 62 years, subject to the condition that they are found fit and eligible for their continued utility beyond the age of 60 years.
27.	Jharkhand High Court	The High Court resolved to recommend enhancement of the age of superannuation of Judicial Officers to 62 years and ask the State Government to reconsider its earlier decision.
28.	Kerala High Court	The High Court opined that the age of superannuation of the Members of the District Judiciary be enhanced to 62 years with prospective effect.
29.	Madras High Court	The High Court resolved to enhance the retirement age of Judicial Officers of the Tamil Nadu State Judicial Service and Puducherry Judicial Service from 60 years to 62 years. However, such extension shall not be automatic but be subject to a screening process similar to that conducted at the age of 58 years, to ensure the fitness and

		suitability of the Judicial Officers whose services are proposed to be extended up to 62 years.
30.	Manipur High Court	The Full Court of the High Court resolved to increase the superannuation age of officers of the Manipur Judicial Service from the existing 60 years to at least 62 years.
31.	Orissa High Court	The High Court revisited its previous Resolution and now resolved that the age of superannuation of Members of the District Judiciary shall be extended from 60 to 62 years.
32.	Patna High Court	The Full Court of the High Court resolved to enhance the retirement age of Judicial Officers from 60 to 62 years.
33.	Punjab and Haryana High Court	The High Court resolved that the retirement age of the Judicial Officers in Punjab and Haryana may be enhanced from 60 years to 62 years.
34.	Rajasthan High Court	The High Court accorded its consent for enhancement of the age of superannuation of Judicial Officers from 60 to 62 years.
35.	Sikkim High Court	The High Court resolved that the age of superannuation of members of the District Judiciary be increased from the present 60 years to 62 years.
36.	Telangana High Court	The High Court resolved to recommend enhancement of the age of superannuation of the Judicial Officers from 61 years to 62 years.
37.	Tripura High Court	The High Court agreed to the proposal to enhance the age of superannuation of Judicial Officers from 60 years to 62 years.

38.	Uttarakhand High Court	The High Court agreed to enhance the age of superannuation of members of the District Judiciary from 60 to 61 years.

18. The responses of the State Governments/UT Administrations, however, are varied. While some of them have agreed to the recommendations of the High Courts to enhance the age of superannuation, others have either sought time for further consideration or demurred, primarily on the grounds that it would be an additional burden on the State exchequer or such enhancement in age would cause heartburn amongst other employees in the service of the State. States have also flagged the concern that such enhancement would affect legitimate aspirations of the young entrants in judicial services. For better appreciation, a chart containing the stand taken by the different States/UTs is set out hereinafter:

Sr. No.	**State**	**Particulars**
32.	Andhra Pradesh	*No affidavit/written submission has been filed.*
33.	Arunachal Pradesh	The State Government is actively considering the matter. (*as submitted by the learned Advocate General*)
34.	Assam	The State Government is not agreeable to the proposition for extending the age of superannuation of Members of District Judiciary beyond 60 years.
35.	Bihar	The State Government has arrived at the decision not to enhance the age of judicial officers from the present age of 60 years.
36.	Chhattisgarh	The State has taken a decision to enhance the age of superannuation of officers of the

		District Judiciary from 60 to 62 years.
37.	Goa	The recommendation of the Bombay High Court is presently under active consideration of the State Government
38.	Gujarat	The issue is pending consideration by the competent authority, and additional time is required for taking a final decision.
39.	Haryana	The State Government reiterated its stand to not raise the age of judicial officers beyond 60 years.
40.	Himachal Pradesh	*No affidavit/written submission has been filed.*
41.	Jharkhand	*No affidavit/written submission has been filed.*
42.	Karnataka	The State Government has agreed to increase the age of superannuation from 60 to 62 years. (*as submitted by the learned Advocate General*)
43.	Keralam	The State Government has taken a decision that the retirement age of Judicial Officers may not be enhanced for the time being.
44.	Madhya Pradesh	The State Government has agreed to increase the age of superannuation from 60 to 62 years. (*as submitted by the learned standing counsel*)
45.	Maharashtra	The State Government has agreed to increase the age of superannuation from 60 to 62 years. (*as submitted by the learned Advocate General*)
46.	Manipur	The State Government has taken a decision to maintain the existing age of superannuation of Judicial Officers at 60 years.

47.	Meghalaya	As per the applicable Rules, the age of superannuation of the Judicial Officers in the State of Meghalaya is 58 years, with the High Court having power to retain services of any Judicial Officer till the age of 60 years.
48.	Mizoram	*No affidavit/written submission has been filed.*
49.	Nagaland	*No affidavit/written submission has been filed.*
50.	Odisha	The State Government is actively considering the matter. (*as submitted by the learned Advocate General*)
51.	Punjab	The existing retirement age of 60 years is legally valid and does not warrant alteration in the State at this stage.
52.	Rajasthan	The State will reconsider the matter in light of the orders of this Court. (*as submitted by the learned Attorney General*)
53.	Sikkim	The State Government has agreed to increase the age of superannuation from 60 to 62 years. (*as submitted by the learned Advocate General*)
54.	Tamil Nadu	The State Government has no objection to enhancement of the superannuation age of the Judicial Officers in the Tamil Nadu State Judicial Service from 60 to 62 years.
55.	Telangana	The proposal of the High Court to enhance the age of superannuation is under active consideration by the State.
56.	Tripura	The issue is under active consideration of all the stakeholder Departments of the State Government, and it is anticipated that it would take two more weeks' time.

57.	Uttarakhand	The age of superannuation of the Members of the District Judiciary shall be retained at 60 years.
58.	Uttar Pradesh	The view of the State Government is that the age of superannuation of Judicial Officers be kept at 60 years only.
59.	West Bengal	The State Government has agreed to increase the age of superannuation from 60 to 62 years. (*as submitted by the learned Advocate General*)
60.	NCT of Delhi	The process of obtaining approval from the competent authorities is underway, and the position of the NCT shall be consequential to it.
61.	UT of Jammu & Kashmir	*No affidavit/written submission has been filed.*
62.	UT of Puducherry	The UT Administration is actively considering the matter. (*as submitted by the learned Counsel for the UT*)

19. We have heard Mr. Siddharth Bhatnagar, Learned *Amicus Curiae*, Mr. R. Venkatramani, Learned Attorney General for India (appearing for the State of Rajasthan), the Learned Advocates General/Senior Counsel/Standing Counsel for the other States/UTs, Mr. Vikas Singh and the other Learned Senior Counsel/Counsel appearing for the intervenors. Mr. Bhatnagar has rightly pointed out that the age of superannuation of judicial officers was last enhanced in 1992.[6] As a consequence of that judicial decision, the Union of India as well as the various States filed various Review Petitions, leading to this Court making detailed

[6] All India Judges' Assn. (1) v. Union of India, (1992) 1 SCC 119

findings in ***All India Judges' Association v. Union of India***,[7] the relevant extract whereof reads as under:

> "***7. It is not necessary to repeat here what has been stated in the judgment under review while dealing with the same contentions raised there. We cannot however, help observing that the failure to realize the distinction between the judicial service and the other services is at the bottom of the hostility displayed by the review petitioners to the directions given in the judgment. The judicial service is not service in the sense of 'employment'. The Judges are not employees. As members of the judiciary, they exercise the sovereign judicial power of the State. They are holders of public offices in the same way as the members of the council of ministers and the members of the legislature. When it is said that in a democracy such as ours, the executive, the legislature and the judiciary constitute the three pillars of the State, what is intended to be conveyed is that the three essential functions of the State are entrusted to the three organs of the State and each one of them in turn represents the authority of the State. However, those who exercise the State power are the Ministers, the Legislators and the Judges, and not the members of their staff who implement or assist in implementing their decisions. The council of ministers or the political executive is different from the secretarial staff or the administrative executive which carries out the decisions of the political executive. Similarly, the Legislators are different from the legislative staff. So also the Judges from the judicial staff. The parity is between the political executive, the Legislators and the Judges and not between the Judges and the administrative executive. In some democracies like the USA, members of some State judiciaries are elected as much as the members of the legislature and the heads of the State. The Judges, at whatever level they may be, represent the State and its authority unlike the administrative executive or***

[7] (1993) 4 SCC 288.

the members of the other services. The members of the other services, therefore, cannot be placed on a par with the members of the judiciary, either constitutionally or functionally.

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9. So much for the contention of the review petitioners that the directions given by this Court would lead to the demand from the members of the other services for similar service conditions. It is high time that all concerned appreciated that for the reasons pointed out above there cannot be any link between the service conditions of the Judges and those of the members of the other services. It is true that under Article 309 of the Constitution, the recruitment and conditions of service of the members of the subordinate judiciary are to be regulated by the Acts of the appropriate legislature and pending such legislation, the President and the Governor or their nominees, as the case may be, are empowered to make rules regulating their recruitment and the conditions of service. It is also true that after the Council of States makes the necessary declaration under Article 312, it is the Parliament which is empowered to create an All India Judicial Service which will include posts not inferior to the post of District Judge as defined under Article 236. However, this does not mean that while determining the service conditions of the members of the judiciary, a distinction should not be made between them and the members of the other services or that the service conditions of the members of all the services should be the same. As it is, even among the other services, a distinction is drawn in the matter of their service conditions. This Court has in the judgment under review, pointed out that the linkage between the service conditions of the judiciary and that of the administrative executive was an historical accident. The erstwhile rulers constituted, only one service, viz., the Indian Civil Service for recruiting candidates for the judicial as well as the administrative service and it is from among the successful

candidates in the examination held for such recruitment, that some were sent to the administrative side while others to the judicial side. Initially, there was also no clear demarcation between the judicial and executive services and the same officers used to perform judicial and executive functions. Since the then Government had failed to make the distinction between the two services right from the stage of the recruitment, its logical consequences in terms of the service conditions could not be avoided. With the inauguration of the Constitution and the separation of the State power distributed among the three branches, the continuation of the linkage has become anachronistic and is inconsistent with the constitutional provisions. As pointed out earlier, the parity in status is no longer between the judiciary and the administrative executive but between the judiciary and the political executive. Under the Constitution, the judiciary is above the administrative executive and any attempt to place it on a par with the administrative executive has to be discouraged. The failure to grasp this simple truth is responsible for the contention that the service conditions of the judiciary must be comparable to those of the administrative executive and any amelioration in the service conditions of the former must necessarily lead to the comparable improvement in the service conditions of the latter.

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29. The alleged financial burden that would be thrown on the State exchequer on account of the enhancement of the superannuation age as a result of the payment of the maximum salary in the pay scale to the officers for a further period of 2 or 5 years as the case may be, and on account of the higher outlay on their retiral benefits, is negligible considering the enormous advantage that the administration of justice and the society at large would derive from the enhancement in the age of retirement. The additional financial outlays have also to be weighed against

those occasioned by the training of the new recruits, comparatively lower and slower rate of disposal of cases, higher rate of incorrect decisions and the consequent more number of appeals etc. Further, a simple arithmetical exercise would show that there is in fact little extra financial outlay involved. For, as against the payment of the maximum salary for another 2 or 5 years as the case may be, we have to calculate, for that period, the salary of the new recruit and the pension of the incumbent. The further contention that it would affect the employment conditions in different States is equally misconceived since all over India there are not more than about 10,000 judicial posts and most of the judicial officers after their retirement come to be appointed to the quasi-judicial or administrative tribunals. Thus, we see no merit in any of the objections to the enhancement of the retiring age."

[Emphasis supplied]

20. More than three decades have elapsed since the said pronouncements. During this period, the sanctioned strength of the judicial service in most States has been increased, and a substantial number of posts have remained vacant on account of the non-availability of eligible candidates. The induction of competent judicial officers is a *sine qua non* for the preservation of an independent judiciary, which forms part of the basic structure of the Constitution. Judicial officers constitute a specialised cadre, distinct and independent from the other categories of employees in the service of the State.

21. It bears no gainsaying that the appointment and conditions of service of judicial officers are matters falling within the direct control of the respective High Courts under Articles 233 and 235 of the Constitution.[8] Other employees of the State cannot, therefore, claim parity with members of the judicial service. In these

[8] Shamsher Singh and Anr. v. State of Punjab, 1974 AIR 2192.

circumstances, the apprehension expressed by the States regarding heartburn amongst other categories of employees is wholly unfounded. Equally misplaced is the apprehension of additional financial burden; on the contrary, an increase in the age of superannuation would enable the State to retain the services of experienced officers, while simultaneously effecting substantial savings on the post-retirement benefits that would otherwise become payable upon their superannuation.

22. In fact, these very issues stood substantially addressed and negatived in our earlier order dated 05.08.2026.[9] However, with a view to achieving a sense of consensus, we had directed the State Governments to revisit the issue and, uninfluenced by the age of superannuation prescribed for other Government employees, to bear in mind the reasons recorded in the said order. We note with appreciation that almost all the High Courts have agreed to the enhancement of the age of superannuation from 60 years to 62 years, and that several States, upon revisiting the issue, have departed from their earlier stance and likewise agreed to such enhancement. Others, however, continue to hold on to the same reasoning as before, which did not find favour with this Court.

23. It needs no emphasis that the source of recruitment, the nature of duties discharged by a judicial officer, and the power of appointment and superintendence exercised by the High Court under the constitutional scheme, unequivocally distinguish the unique and independent character of the judicial service from that of other employees of the State Government. In such view of the matter, we reiterate our opinion that the enhancement of the age of superannuation of judicial officers cannot be permitted to have a cascading effect

[9] Order dated 05.08.2026 in W.P. (C) No. 1022/1989, Paragraphs 7-13.

on the principle of parity claimed by other employees. Apprehension has been expressed that this exercise may cause disruption amongst other categories of employees and derail the smooth functioning of civic administration in the States; we are constrained to observe that such apprehensions are wholly extraneous to the issue at hand, namely, the requirement of enhancing the age of superannuation of members of the judicial service for the efficient administration of justice.

24. As other employees of the State cannot claim parity with members of the judicial service, it would be wholly untenable in law to withhold the enhancement of the age of superannuation on the plea of an unjustified and petulant demand raised by other employees of the State. The concern of the States regarding an enhanced financial burden is, in our view, clearly misconceived. Were members of the judicial cadre to superannuate at the age of 60 instead of 62, the State would stand burdened with the responsibility of paying the post-retiral dues of such superannuated officers, in addition to the salary of those newly appointed in their place. On the contrary, if experienced members of the judicial cadre are permitted to continue in service till the age of 62, the additional burden of bearing such post-retiral dues would stand correspondingly postponed.

25. The third, and more significant, aspect has been highlighted by Mr. Vikas Singh, namely, that judicial officers require specialised training, and experience has shown that the recruitment of independent and competent judicial officers is an arduous task. Most of the recruitment drives undertaken in the various States have not resulted in optimum recruitment or in the filling up of the sanctioned cadre strength, and a yawning gap between the sanctioned and working strength persists across the board.

26. Mr. Singh has argued that a similar crisis of employability is discernible in other professional cadres as well, and that the States concerned have responded thereto by enhancing the age of superannuation applicable to those cadres. We are of the view that identical reasoning applies with full force to the judicial service and would justify the enhancement of the age of superannuation of judicial officers. We further take note of the fact that a similar recommendation was made by the Shetty Commission, which was not accepted by this Court in ***All India Judges' Association (3) v. Union of India***.[10] It was contended therein that the age differential between the High Court and the district judiciary ought to be maintained.

27. We have taken into consideration the fact that age differential may be a legitimate expectation in the superior judiciary. But, the crying need of the hour is to ensure that the attrition of the experienced judicial talent be arrested so that the gap between the sanctioned and the working strength in the judicial service is reduced, and access to justice does not remain a mere chimera due to unfilled posts. It is with this spirit that we request the High Courts and States to reconsider the issue with regard to enhancement of age of superannuation in the district judiciary, whose conditions of service are to be governed by rules framed on their recommendation.

28. Being alive to the aforesaid crisis in dispensation of justice, most of the High Courts have consented to such enhancement. Some High Courts have wisely added relevant riders with regard to assessment of judicial work as a condition precedent, so that deadwood can be removed, and only the competent officers of proven integrity may be permitted to continue in the cadre. This suggestion is

[10] (2002) 4 SCC 247, paragraph 26.

most welcome as it would balance the preservation of experienced judicial officers, while removing the clog of deadwood, blocking the entrance of young blood invigorating the system.

29. In light of these circumstances, we are inclined to issue the following directions:

(e) The States which have consented to the enhancement of age of the Judicial Officers, namely, Chhattisgarh, Karnataka, Madhya Pradesh, Maharashtra, Sikkim, Tamil Nadu, West Bengal, are directed to amend the service rules and enhance the age of superannuation in the judicial service to 62 years, subject to the suitability assessment of the concerned Judicial Officer, on their attainment of the age of 60 years, by the High Court. Such amendments shall be carried out as early as possible, preferably within two months;

(f) Pending amendment of the rules, no judicial officer in the aforesaid States who has attained the age of 60 years shall superannuate until he attains the age of 62 years, subject to an assessment of his suitability and performance by the High Court concerned;

(g) Judicial officers in the aforesaid States who have superannuated on or after 31.03.2026 shall be given an option to re-join the judicial office, if they have not already obtained subsequent employment or has been appointed to any other office of profit under the Union Government or any State Government. In the event they exercise such option in the affirmative, they shall be reappointed with all consequential benefits of pay, seniority, and continuity in service, subject to their suitability assessment and their performance by the High Court, and surrender of post-retirement benefits, if any already granted;

(h) Other States/UTs, i.e., Andhra Pradesh, Arunachal Pradesh, Assam, Bihar, Goa, Gujarat, Haryana, Himachal Pradesh, Jharkhand, Keralam, Manipur, Meghalaya, Mizoram, Nagaland, Odisha, Punjab, Rajasthan, Telangana, Tripura, Uttarakhand, Uttar Pradesh, NCT of Delhi, Jammu

and Kashmir, and Puducherry and are directed to reconsider their decision, if already taken, or take an appropriate decision in the matter of enhancement of age in the judicial service from 60 to 62 years, in the light of the observations made by us in our order dated 05.08.2026 as well as in this order, positively within two weeks, and submit a compliance report.

30. Post these matters for further consideration on 01.10.2026. The Registry is directed not to tag W.P.(C) No.1022 of 1989 with the other petitions.

(ARJUN BISHT)
ASTT. REGISTRAR-cum-PS

(PREETHI DILEEP KUMAR)
DY. REGISTRAR